

The Claremont City Council held a meeting on Wednesday, September 12, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mayor Lovett asked to suspend Council Rule 24 in order to add two items. One item is a discussion for assessment abatement issues as they relate to the Topstone building. The other is a public safety issue.

Nancy Merrill, Planning and Development Director, said regarding the property at 139 Main Street, a request has been made for an RSA 155-B, Hazardous and Dilapidated Buildings, action so the City can require the owner to do repair work or the City to demolish the building and to lien the property.

A motion was made by Ms. Kier and seconded by Mr. Damren to suspend the Council Rule.

Roll call:

Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Zullo - yes
Kier - yes
Koloski - yes
Pope - yes

Lovett - yes
Motion carried 9-0.

Agenda Changes:

- Add RSA 155-B as Item A
- Move Annual Approval of Investment Policy to Item C
- Delete Item D Ordinance 562 – Amending the Non-Union Employee Classification Plan – First Reading
- Delete Item E Amtrak Update
- Add Abatement and Assessment Issue as Item E

REPORT OF THE SECRETARY

A motion was made by Mr. Koloski and seconded by Mr. Stone to accept the minutes of the August 8, 2018, City Council meeting.

Voice vote: motion carried 8-0, with 1 abstain (Ms. Kier).

A motion was made by Mr. Damren and seconded by Ms. Kier to accept the minutes of the August 22, 2018, City Council meeting.

Voice vote: motion carried 9-0.

MAYOR'S NOTES

National Recovery Month Proclamation

Mayor Lovett presented the National Recovery Month proclamation naming September as National Recovery Month to Jimmie Nielsen, V, REMIX, and Maggie Monroe-Cassel, TLC Family Resource Center.

Ms. Monroe-Cassel invited everyone to a ribbon cutting at the Center for Recovery Resources September 20, 4:30 p.m.-6:30 p.m., 1 Pleasant Street.

Mayor Lovett's notes:

- On behalf of the City, she accepted an award from the U.S. Environmental Protection Agency – Region 1, Environmental Merit Award for outstanding efforts in protecting children's environmental health in New England. This was given for the City's work on eliminating childhood lead poisoning.
- 21% of the City's voters came out to vote yesterday.
- Yesterday was the 17th anniversary of the 911 attacks. She thanked the Fire Department for raising its large flag.
- Claremont will show the documentary MisLEAD: America's Secret Epidemic, September 25 at the Claremont Savings Bank Community Center (CSBCC), 5:30 p.m.

CITY MANAGER'S REPORT

Mr. McNutt's City Manager's Report:

- The City's credit rating has been upgraded from A2 to A1 by Moody's Investors Service. The City's credit rating was downgraded in December 2010 from A1 to A2.
- Public Works Director Scott Sweet will leave in October as he has taken a new position with a private company. Assistant Public Works Director Victor St. Pierre will be the Interim Public Works Director while we search for a new director.
- By late October, the Main Street Project will have a base coat of pavement and then in the spring, the contractors will complete the project.
- East Street culvert and water line projects have been completed.
- Paving of Chellis and Centennial Streets is finished.
- The City is seeking donations for the Mountain View Cemetery gates pillar restoration.
- Hutter Construction has begun repair work on the CSBCC aerobics room walls to strengthen them against impacts.
- New playground equipment has been installed at Monadnock Park, near the Chestnut Street entrance.
- K9 Unit, Officer Petrin and Maverick, are headed to drug school and upon completion, Maverick will be completely trained.
- Officers Kelsey and Spencer are the newest patrol officers to graduate from the academy.
- With the recent retirement of Lt. Shepherd, the City is negotiating a contract with the Sullivan County Attorney's office for all of the City's prosecutor needs. Attorney John Gasaway will be a Sullivan County employee, but will work out of Claremont's Police Station.
- The City has retained the law firm of Napoli & Shkolnik in regard to the class action lawsuit against the pharmaceutical giants who have played a role in the opioid crisis. The City is seeking to recover incurred costs.
- Central Collections' new person will start soon and they will be back to regular hours soon after.
- Small Business Summit Tuesday, 9/18, 8:30 a.m., at the CSBCC. Public is invited.

Mr. O'Hearne asked for an update on the union negotiations. Mr. McNutt said the Police and Fire unions are still under their current bargaining agreements. The City is negotiating with the Clerical and Public Works unions.

Mr. O'Hearne asked how much the City will pay for the Prosecutor. Mr. McNutt will check.

Mr. Stone asked for an overview of the contracted position versus the benefited position. Mr. McNutt will get the information.

APPOINTMENT TO BOARDS AND COMMITTEES

Fiske Free Library Board of Trustees

A motion was made by Mr. Pope and seconded by Mr. Stone to re-appoint George Caccavaro, Jr., to seat 1 of the Fiske Free Library Board of Trustees.

Voice vote: motion carried 9-0.

Frances J. Tolles Home Trustees

A motion was made by Mr. Damren and seconded by Mr. Zullo to appoint Claire Dole to seat 1 of the Frances J. Tolles Home Trustees.

Voice vote: motion carried 9-0.

A motion was made by Mr. O’Hearne and seconded by Ms. Kier to appoint Deborah Snelling to seat 7 of the Frances J. Tolles Home Trustees.

Mr. Pope abstained as Ms. Snelling is a family member.

Voice vote: motion carried 8-0, with 1 abstain (Mr. Pope).

Personnel Advisory Board

A motion was made by Mr. Koloski and seconded by Mr. Damren to appoint Mark Limoges to seat 3 of the Personnel Advisory Board (PAB).

Mr. Koloski said in the section that asks “Are you related to any City Employee or member of any City Board/Committee, or have you ever conducted business with the City, any of its employees or members of the City’s Boards/Committees? Provide details.” Mr. Limoges’ application says “No.” Mr. Koloski said Mr. Limoges’ son is a Claremont Firefighter. He also said he believes Mr. Limoges has a relation to a Claremont Police Dispatcher and a Public Works worker. He wondered if this was an error and whether or not it was allowed for this particular position.

Mayor Lovett said the answer should have been a yes. She referenced the criteria in section 53 – Personnel Advisory Board, of the Charter. She talked about Mr. Limoges’ ability to recuse himself if he had a conflict.

Mr. Koloski asked if Mr. Limoges would be tasked with hearing the appeals of employees other than Merit Plan employees. He asked what the process would be. He asked if this could be tabled until the questions are answered.

Mr. Zullo said everyone is related to someone.

Mr. Koloski said this board would hear any concerns that a City employee has and then act as a judicial body and make a decision involving that employment status. This is only a three-person board and he was concerned that someone would not be heard because one member had to recuse themselves and another member of the board would not be available.

Mr. Pope suggested looking in the Code of Conduct.

Mayor Lovett said if Council approves the application, it should be with the caveat that the application be amended. Also, if there is a conflict of interest, then he should recuse himself.

Mr. Koloski said even though he made the motion, he would not vote in the affirmative because he is not comfortable with this.

Mr. Damren agreed that in the event of a conflict of interest, Mr. Limoges would have to recuse himself.

Mr. Stone asked if all the relatives are in the collective bargaining units or part of the Merit Plan. Mr. McNutt said he would have to check.

Mr. Koloski said he preferred to table this in order to get a legal response.

Mr. Damren said he thinks it may be appropriate to talk about the need for an alternate board member.

Mr. O'Hearne said he had no problem with this application.

Mr. Koloski said in the section that asks "Have you now or have you ever been cited for violating any local, state or federal ordinance, law or regulation related to land use, property maintenance, International Building Codes, or other legal requirement pertaining to the subject of the Board/Committee for which you are applying? Provide details." Mr. Limoges' application says "No." Mr. Koloski said one of Mr. Limoges' properties had to go before the Zoning Board of Adjustment for a variance.

Mr. Pope read Section 53 – Personnel Advisory Board in the Charter. He said it deals with all employees.

Mayor Lovett said she thinks there is a process in place if there is a conflict.

Voice vote: motion carried 7-2 with Mr. Koloski and Ms. Kier voting no.

Claremont Energy Advisory Committee

There were two applicants: Marilyn Harris and Cornelia Sargent.

A motion was made by Mr. Pope and seconded by Mr. Koloski to appoint Marilyn Harris to seat A2 of the Claremont Energy Advisory Committee.

Voice vote: motion carried 8-1, with Ms. Kier voting no.

Ms. Kier said she would have liked to talk about each applicant separately before a motion would be heard.

CITIZEN'S FORUM

Joe Osgood, Ward 2, said it looks like the Council had no knowledge of the \$222,000 tax abatement to Topstone and that bothers him. He would like to know how that happened without Council's knowledge.

NEW BUSINESS

Order to Repair or Remove Hazardous Building Pursuant to NH RSA 155-B – 139 Main Street

Ms. Merrill said bricks from the building at 139 Main Street are falling onto cars. An engineering study was done. The third-floor ceiling has collapsed. Roof rafters are no longer supporting the ceiling and there is wood rot. The City thinks the owner (Frank Sargent) is in South Carolina. He has done nothing to shore up the building. There are barriers in place to keep people away from the immediate area. The City is seeking a legal opinion about how to address the recommended RSA 155-B action. The City would like to start the process soon as the building cannot take a snow load. Also, there is a shared wall that needs to be evaluated.

Mayor Lovett said the Historic District Commission needs to weigh in on this.

Mr. McNutt said Mr. Sargent owns several distressed properties in Claremont and owes the City approximately \$100,000.

Ms. Merrill said the RSA 155-B action will allow the City to lien any property Mr. Sargent owns.

Mr. McNutt said taking care of this property will wipe out the budget line item and no action will be taken on 111 and 119 Main Street; 139 Main Street is a public safety issue. He said Mr. Sargent created an LLC for this property. The City believes it will not receive money from Mr. Sargent for this.

A Motion was made by Ms. Kier and seconded by Mr. Stone that WHEREAS the City's health and code enforcement officers have determined the structure located at 139 Main Street, Map 107, Lot 015, to be a hazardous building and a threat to public health and safety, the Claremont City Council hereby orders the owner of said property to correct the hazardous condition of such building or to raze or remove the same, preserving the shared

common wall with an adjacent building, and further authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required pursuant to RSA Chapter 155-B to order the owner of said building to correct the hazardous condition of such building or to raze or remove the same.

The Council further authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to enforce such order through the appropriate filing with the 5th Circuit Court – District Division – Claremont and, if judgment against the property owner is obtained, to enforce said judgment and recover all sums expended by the City in bringing the property into compliance, pursuant to RSA 155-B:3, 155-B:9 and 155-B:9-a.

Mr. McNutt said after the demolition, the Staff will review what to do with the vacant lot and bring back a recommendation to the Council.

Mr. O'Hearne said he understands the urgency, but has a problem not being able to review the engineer's report before voting on this.

Mayor Lovett said this can be put off until the September 26th meeting, but there is a risk because of the heavy construction going on in the area.

Mr. Koloski asked about the presence of hazardous materials. Ms. Merrill said you cannot demolish the building without doing the required paperwork from DES.

Roll call vote:

Lessard - yes

O'Hearne - no

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 8-1 with Mr. O'Hearne voting no.

Mayor Lovett asked for an update of 139 Main Street at the September 26 meeting. She asked about maintaining the façade in order to keep continuity. Mr. McNutt said the City will look at every option. The plan is to attempt to get approval from the owner to enter the property to begin the environmental abatement process. If demolition is the only route to go, he would like to do it before winter time.

Resolution 2019-8 to Amend Resolution 2016-11 Adoption of RSA 79-E, Community Revitalization Tax Relief – Public Hearing

WHEREAS RSA Chapter 79-E "Community Revitalization Tax Relief Incentive" (hereinafter "RSA 79-E") declares it a public benefit to enhance downtown and town centers; and

WHEREAS RSA 79-E further declares it a public benefit to encourage the rehabilitation of underutilized structures in urban and town centers as a means of encouraging growth of economic, residential, and municipal uses in a more compact pattern in accordance with RSA 9-B.; and

WHEREAS RSA 79-E also declares it a public benefit providing short-term property assessment tax relief and related covenants if they encourage the substantial rehabilitation and use of qualifying structures or, in certain cases, the replacement of qualifying structures; and

WHEREAS a "qualifying structure" means a building located in the City's Downtown and Lower Village Historic Districts as officially designated by the National Register of Historic Places and as further delineated at the area encompassed by the Claremont Historic District, Zoning Map #7 (hereinafter "Historic Districts"), and shall also mean a building located outside the Historic Districts that is listed on or determined eligible for listing on the National Register of Historic Places; and the City Center Zoning District as designated in the official zoning inset map as attached; and

WHEREAS the districts in Claremont eligible for tax relief under the provisions of this resolution include the areas included in the Historic Districts as depicted on Zoning Map #7; and the City Center Zoning District as designated in the official zoning inset map as attached; and

WHEREAS RSA 79-E permits the city to adopt or modify the requirements for requests for community revitalization tax relief incentives;

NOW THEREFORE BE IT RESOLVED by the Claremont City Council that the City hereby adopts and implements the provisions of RSA 79-E, with the certain modifications, as follows:

- A. "Substantial rehabilitation" shall mean rehabilitation of a qualifying structure which costs at least 25 percent or \$75,000 of the pre-rehabilitation assessed valuation, whichever is less, and replacement of a qualifying structure which costs at least 25 percent or \$75,000 of the pre-replacement assessed valuation, whichever is less;
- B. "Tax Relief Period" shall mean a period of up to 5 years, beginning only upon completion of substantial rehabilitation or, in the case of a replacement structure, upon completion of its construction, as well as an additional period of up to 4 years at the Council's discretion for the substantial rehabilitation of a qualifying structure that is listed on or determined eligible for listing on the National Register of Historic Places or state register of historic places, provided that the substantial rehabilitation is conducted in accordance with the U.S. Secretary of Interior's Standards for Rehabilitation; and

BE IT FURTHER RESOLVED that the property owner, as a condition of such tax relief, shall

- A. Document the public benefit at the time of the application for tax relief;
- B. Grant to the City a covenant ensuring that the structure shall be maintained and used in a manner that furthers the public benefits for which the tax relief was granted and shall require the property owner to obtain casualty insurance, and flood insurance, if appropriate, for twice the term of the tax relief;
- C. Grant to the City a lien against the property for the purpose of ensuring proper restoration or demolition of damaged structures and property; and
- D. Maintain the property as taxable, regardless of whether the property owner is otherwise subject to property taxes under RSA Chapter 72; and
- E. Provide the City promptly with all information and documentation that the City may deem relevant for review of the application for such tax relief, as well as for review of the rehabilitation or replacement project under federal, state and local laws, codes and regulations, as may be applicable; and

BE IT FURTHER RESOLVED that if the covenant is terminated for any reason, the City shall assess all current and arrears taxes to the owner as though no tax relief was granted, with interest, in accordance with RSA Chapter 75; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (*Majority Vote Required*)



Ms. Merrill confirmed that this is not about expanding the Historic District. This is about expanding the eligible buildings in a broader area of the 79-E program.

A motion was made by Mr. Damren and seconded by Ms. Kier to adopt Resolution 2019-8 to Amend Resolution 2016-11 Adoption of RSA 79-E, Community Revitalization Tax Relief.

Mr. Damren read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Voice vote: motion carried 9-0.

Acceptance of \$5,000 Donation for the Police Department from Baerbel Merrill – Public Hearing

Police Chief Mark Chase read a letter from Baerbel Merrill, who lives in Wyoming. Mrs. Merrill was repaying (many times over) a kindness that was paid to her by Claremont Police officers in the 1960s. Her husband did not return from a fishing trip and when the responding officers saw that she and her children needed food, they brought her several bags full. Mrs. Merrill sent a \$5,000 donation to the Police Department. Chief Chase said he would like to use the money for outreach when officers see a need. He will report on the distribution of funds in his monthly report. This money will be used specifically for Police outreach.

A motion was made by Mr. Damren and seconded by Mr. Zullo that after a public hearing duly noticed, the Claremont City Council hereby accepts with sincere appreciation the donation of \$5,000 from Baerbel Merrill for the Police Department.

Mr. Koloski asked if others can contribute to the fund. He would like to see the Police Department continue to have funds for outreach.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Mayor Lovett asked that the fund be name the Baerbel Merrill Fund in recognition of her generous donation to the Police Department.

Voice vote: motion carried 9-0.

Annual Approval of Investment Policy

A motion was made by Mr. O’Hearne and seconded by Mr. Damren that the Claremont City Council, pursuant to RSA 47:6 and RSA 48:16, hereby re-adopts the City of Claremont Investment Policy, as amended, and authorizes the City Manager or his designees to take such actions as may be necessary to implement said Investment Policy in accordance with state law and regulation.

Council had a brief discussion for clarification.

Voice vote: motion carried 9-0.

Ordinance 562 – Amending the Non-Union Employee Classification Plan – First Reading

Moved to future meeting.

Amtrak Update

Withdrawn

Assessment Abatement Discussion

Mayor Lovett proposed to have a special meeting focused on one agenda item, the assessment abatement process.

At 8:31 p.m. Mr. Koloski said he has a conflict as he is tenant in that building. He recused himself and stepped down from the Council table.

Mr. Pope asked if it is common to have a Council meeting for every abatement or is this one special because of all the politics surrounding it. Mayor Lovett said this particular property is a catalyst for this discussion. This is not the only property that has had a reduction in assessed value. She prefers to deal with processes to ensure it is fair across the board. She feels it is important to understand the process. Mr. Pope asked if it is normal to have a Council meeting for just one property. Mayor Lovett said this has taken on a life of its own. She would like to be fully educated before taking a position. Mr. Pope said there have been abatements for several properties including the Peterson building. He's trying to understand the idea of being open, fair and honest. He agreed there should be a meeting. He believes this is coming to a head because of the politics.

Mayor Lovett said there are issues with the process that need to be improved.

Mr. Damren said he does not expect every abatement to come to the Council, but this particular property has been brought up many times.

There was a consensus of the Council to meet next Wednesday, September 19, 6:30 p.m.

At 8:40 p.m. Mr. Koloski returned to the Council table.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Pope said the ash landfill has been closed for a long time and that it has the potential to affect the City's water. He asked for an update to be sure it is functioning as it should.

CONSULTATION WITH LEGAL COUNSEL

None

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL

At 8:42 p.m., a motion was made by Mr. Damren and seconded by Mr. O'Hearne to enter the Non-Public Session pursuant to RSA 91-A:3,II(a) – Personnel and to invite Mr. McNutt into the session.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

Council concluded its quarterly review of the City Manager's performance.

A motion was made by Mr. O'Hearne and seconded by Ms. Kier to exit the Non-Public Session.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

ADJOURNMENT

At 9:58 p.m., a motion was made by Mr. Damren and seconded by Mr. O’Hearne to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council